

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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RICHARD ROMO,

Plaintiff,

11-CV-6038 (RRM)(VVP)

-against-

AMENDED COMPLAINT

DET. LUGO, in his individual capacity, DET.
DELROSARIO, in his individual capacity, DET.
EMERITO DEJESUS, in his individual capacity,
JOHN DOES #1-3, in each of their individual
capacities, and THE CITY OF NEW YORK,

Defendants.

Demand for Jury Trial

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Plaintiff, Richard Romo, by and through his attorneys LeBow & Associates, PLLC,
complains of the Defendants, and each of them, as follows:

I. PRELIMINARY STATEMENT

Plaintiff Richard Romo brings this action under 42 USC §§1983 and 1988 to redress Defendants' violations of the rights and immunities secured to Plaintiff by the United States Constitution. Defendants Det. Lugo, Det. Delrosario, Det. DeJesus, and John Does #1-3 are all New York City police officers, who at all times mentioned herein were acting under color of state law. Plaintiff alleges that Lugo, Delrosario, and DeJesus falsely arrested him and maliciously prosecuted him. As against Defendants Does #1-3 (collectively the "Supervisory Defendants"), Plaintiff asserts claims based upon theories of supervisory liability, and alleges that the Supervisory Defendants, and each of them, demonstrated through their individual acts and omissions a deliberate indifference towards the constitutional rights of Plaintiff and others, which acts and omissions directly and proximately caused the violation of Plaintiff's Fourth

Amendment rights, specifically by failing to properly supervise, train, and discipline subordinate officers under their direct supervision and control. Plaintiff asserts a claim against the City of New York based upon entity liability, and alleges that the City of New York maintained certain policies, customs, and practices regarding the hiring, training, supervision, and disciplining of police officers that demonstrated a deliberate indifference towards the constitutional rights of Plaintiff and others, and that directly and proximately caused the violation of Plaintiff's Fourth Amendment rights. Plaintiff seeks compensatory damages from Lugo, Delrosario, DeJesus, Does #1-3, and the City of New York, and punitive damages from Lugo, Delrosario, DeJesus, and Does #1-3.

II. JURISDICTION AND VENUE

1. This Court has federal question jurisdiction over the federal civil rights claims asserted herein against Defendants Lugo, Delrosario, DeJesus, Does #1-3, and the City of New York pursuant to 28 U.S.C. §§1331 and 1343(a)(3). Venue in this district is proper because a substantial part of the events giving rise to the claims described herein occurred in the Eastern District of New York.

III. PARTIES

2. At all times relevant herein, Plaintiff Richard Romo was a resident of Brooklyn, New York, residing at 95 Centre Mall, Red Hook, Brooklyn, NY 11231, and a citizen of the United States.

3. At all times relevant herein, Defendant Det. (FNNK) Lugo was a police officer employed by the New York City Police Department (“NYPD”), and assigned to the Brooklyn South Narcotics Division.

4. At all times relevant herein, Defendant Det. (FNNK) Delrosario was a police officer employed by the NYPD, and assigned to the Brooklyn South Narcotics Division.

5. At all times relevant herein, Defendant Det. Emerito DeJesus (shield#: 07309) was a police officer employed by the NYPD, and assigned to the Brooklyn South Narcotics Division.

6. At all times relevant herein, Defendants Does #1-3 were police officers employed by the NYPD with supervisory authority over Lugo, Delrosario, and DeJesus, and assigned to the Brooklyn South Narcotics Division.

7. At all times relevant herein, The City of New York was a municipal corporation existing under the laws of the State of New York. As such, it maintains a police department, and has enacted rules, regulations, and policies as well as maintaining customs and practices concerning the hiring, termination, training, discipline and the conduct of the officers it employs.

IV. STATEMENT OF FACTS

8. At all times relevant herein, Plaintiff Richard Romo (“Plaintiff”) was a resident of Brooklyn, New York, residing at 95 Centre Mall, Red Hook, Brooklyn, NY 11231.

9. At all times relevant herein, Defendant Det. Lugo (“Lugo”) was an NYPD officer assigned to the Brooklyn South Narcotics Division.

10. At all times relevant herein, Defendant Det. Delrosario (“Delrosario”) was an NYPD officer assigned to the Brooklyn South Narcotics Division.

11. At all times relevant herein, Defendant Det. Emerito DeJesus (“DeJesus”) was an NYPD officer assigned to the Brooklyn South Narcotics Division.

12. At all times relevant herein, Defendants John Does #1-3 (“Does”) were police officers employed by the NYPD with supervisory authority over Lugo, Delrosario, and DeJesus, and assigned to the Brooklyn South Narcotics Division.

13. On or about July 26, 2007, Plaintiff was arrested by Officer Alvarez from the Brooklyn South Narcotics Division, who claimed that Plaintiff had heroin on his possession and also sold heroin to his companion, both charges that Plaintiff denies.

14. On or about August 17, 2007, Alvarez testified falsely before a grand jury that Plaintiff possessed glassines of heroin and sold five of them to his companion, and the grand jury indicted Plaintiff for criminal possession and criminal sale of narcotics.

15. Although Plaintiff maintained his complete innocence to the charges against him, he was also aware that if a grand jury had believed Alvarez’ false accusations, a trial jury would also be likely to believe Alvarez, and thus despite Plaintiff’s innocence, he could nonetheless be convicted after trial and receive a much longer sentence than the two years promised to him under a proposed plea bargain.

16. On or about September 2007, based upon the recorded admissions of Detective Sean Johnstone, the NYPD’s Internal Affairs Division (“IAD”) commenced an investigation to determine the extent of the corruption and misconduct occurring in the Brooklyn South Narcotics Division.

17. On information and belief, on or about November 2007, the IAD’s investigation confirmed that widespread corruption was occurring within the Brooklyn South Narcotics Division, and specifically, that Alvarez was involved in the corruption, which included such

criminal acts as official misconduct, the falsifying of business records, and the filing of false documents.

18. On or about December 3, 2007, Plaintiff pled guilty to Attempted Criminal Sale of a Controlled Substance in the Third Degree, in violation of PL §110 / 220.39, in exchange for the promise that he would receive a sentence of incarceration of no more than two years.

19. On information and belief, on or about December 19, 2007, Defendant Alvarez was arrested along with three other officers from the Brooklyn South Narcotics Division, and was charged with official misconduct, falsifying business records, and filing false documents.

20. On or about December 20, 2007, Plaintiff was sentenced to a two-year term of incarceration.

21. On or about December 26, 2007, Plaintiff was sent to Mohawk Correctional Facility in Rome, N.Y., to serve his sentence.

22. On information and belief, on or about March 3, 2008, at the request of the Kings County District Attorney's Office, Judge John P. Walsh vacated Plaintiff's conviction pursuant to CPL §160.60: "The arrest and prosecution shall be deemed a nullity, and the accused shall be restored, in contemplation of law, to the status occupied before the arrest and prosecution."

23. On information and belief, several Brooklyn South Narcotics Division officers, including Lugo, Delrosario, and DeJesus, were aware that Plaintiff was one of the individuals arrested by Alvarez and later released when many convictions resulting from Alvarez' arrests and testimony were overturned.

24. On information and belief, several Brooklyn South Narcotics Division officers, including Lugo, Delrosario, and DeJesus suspected that Plaintiff had a role in Alvarez' prosecution.

25. On or about December 16, 2008, Lugo and Delrosario were driving around when they saw Plaintiff, remembered that Plaintiff had claimed that Alvarez had attempted to plant drugs on him and falsely charge him with drugs, realized that Plaintiff would not be out of jail unless his conviction was overturned, and decided to arrest him by falsely claiming that he had drugs.

26. On or about December 16, 2008, Plaintiff was on a sidewalk in the Park Slope neighborhood of Brooklyn, New York when he took out his cell phone to call his son's mother.

27. On information and belief, Plaintiff was approached by Lugo and Delrosario, dressed in plain clothes.

28. On information and belief, Lugo told Plaintiff "Police, freeze!", but did not show his badge.

29. On information and belief, Lugo grabbed Plaintiff.

30. On information and belief, Lugo then pushed Plaintiff down to the ground.

31. On information and belief, Lugo then put his hand on Plaintiff's throat, and said "spit it out!"

32. On information and belief, Lugo then said that Plaintiff must have thrown the drugs.

33. On information and belief, Lugo rolled Plaintiff over and handcuffed him.

34. On information and belief, Lugo then started looking around the area as if to find discarded drugs.

35. On information and belief, Lugo did not find any drugs, and told Plaintiff to get up.

36. On information and belief, Plaintiff was unable to get up from a prone position while handcuffed, and Lugo and Delrosario grabbed him and pulled him up.

37. On information and belief, Lugo dragged Plaintiff into the lobby of Amerikick Martial Arts' studio on that block, and began to frisk him within the view of the parents and children going into and out of the studio.

38. On information and belief, Lugo put his hands down Plaintiff's pants within the view of the parents and children going in and out of the studio. Lugo then left the building and began searching around the area outside in an attempt to find discarded drugs. Delrosario remained with Plaintiff.

39. On information and belief, one of the instructors from the studio asked Delrosario what he was doing. Delrosario showed his badge and said "we got a crack dealer here."

40. On information and belief, Lugo returned and asked Delrosario to let Plaintiff go, and said to Plaintiff "It's your lucky day."

41. On information and belief, Plaintiff asked for Lugo's badge number.

42. On information and belief, Lugo asked Plaintiff "You want to be a wiseguy?", and called for a police van.

43. On information and belief, when the police van arrived, DeJesus got out. Lugo told DeJesus that Plaintiff had drugs and discarded them, and was resisting arrest.

44. On information and belief, DeJesus declared Plaintiff under arrest.

45. On information and belief, Plaintiff was taken to the 72nd Precinct in Greenwood Heights, Brooklyn.

46. On information and belief, Plaintiff was charged with criminal possession of a controlled substance and resisting arrest.

47. On information and belief, Plaintiff was taken to Brooklyn Central Booking at 120 Schermerhorn Street, Brooklyn, NY 11201.

48. On information and belief, Plaintiff was arraigned for the charges of resisting arrest, a class A misdemeanor, attempted tampering with physical evidence, a class A misdemeanor, attempted assault in the third degree, a class B misdemeanor, and harassment in the second degree, a violation, and released.

49. On information and belief, Plaintiff had to attend several court hearings on those charges over the next two years.

50. On or about November 30, 2010, the judge dismissed all of those charges against Plaintiff.

V. FIRST CAUSE OF ACTION -
CIVIL RIGHTS AND CONSTITUTIONAL VIOLATIONS
(Against Defendants Lugo, Delrosario, and DeJesus)

51. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 50 of this Complaint with the same force and effect as though fully set forth herein.

52. As a result of the actions of Defendants Lugo, Delrosario, and DeJesus, which began on or about December 16, 2008, Plaintiff was deprived of his rights under the United States Constitution and federal civil rights law. Plaintiff's rights are secured by provisions of the Fourth Amendment and 42 U.S.C. §1983.

53. The actions of Defendants Lugo, Delrosario, and DeJesus were committed under the color of law and were intentional and willful.

54. On or about December 16, 2008, Defendants Lugo, Delrosario, and DeJesus intended to confine Plaintiff.

55. On or about December 16, 2008, Plaintiff was conscious of being confined.

56. On or about December 16, 2008, Plaintiff at no time consented to being confined by Defendants Lugo, Delrosario, and DeJesus, but nonetheless cooperated with them because they were NYPD officers acting in an official capacity.

57. That at the time of Plaintiff's arrest on December 16, 2008, Lugo, Delrosario, and DeJesus had not seen Plaintiff possess drugs, had not found any drugs on his person, had not seen or heard him discuss drugs with any other individual, had not seen him discard drugs or have reason to believe that he had discarded drugs, had not found any discarded drugs in the area around Plaintiff, and did not have any independent knowledge of Plaintiff being involved in any drug activity, and therefore did not possess sufficient information for a reasonable person to believe that Plaintiff had possessed a controlled substance.

58. That at the time of Plaintiff's arrest on December 16, 2008, the information that Lugo provided DeJesus about Plaintiff was insufficient for a reasonable person to believe that Plaintiff had possessed drugs or discarded drugs or resisted arrest.

59. In view of the fact that Lugo, Delrosario, and DeJesus did not possess sufficient information for a reasonable person to believe that Plaintiff had possessed a controlled substance, and had no reason to believe that Plaintiff had committed any other crime, they therefore did not possess knowledge sufficient for a reasonable person to believe that Plaintiff was committing or had committed a crime at the time of his arrest.

60. In view of the fact that Defendants Lugo, Delrosario, and DeJesus did not possess information upon which a reasonable person could have believed that Plaintiff had committed or was committing a crime at the time of arrest, Defendants Lugo, Delrosario, and DeJesus did not have probable cause to arrest and confine Plaintiff.

61. That neither on nor about December 16, 2008, nor at any other relevant time herein, did Defendants Lugo, Delrosario, and DeJesus possess a warrant for Plaintiff's arrest and confinement.

62. That neither on nor about December 16, 2008, nor at any other relevant time herein, did such a warrant for Plaintiff's arrest and confinement exist.

63. In view of the fact that Defendants Lugo, Delrosario, and DeJesus intended to confine Plaintiff, Plaintiff was conscious of his confinement, Plaintiff did not consent to his confinement, and the confinement was not privileged since it was not conducted pursuant to a warrant or probable cause, Plaintiff's confinement was therefore unlawful and actionable under 42 U.S.C. §1983.

64. The actions of Defendants Lugo, Delrosario, and DeJesus amounted to false arrest and false imprisonment under 42 U.S.C. §1983 and the Fourth Amendment of the United States Constitution.

65. As a direct and proximate result of Plaintiff's false arrest and false imprisonment, Plaintiff was caused to suffer a loss of freedom and liberty, great mental anguish, emotional distress, and public humiliation, and was further caused to experience fear of physical harm and violence, and to incur attorney's fees and expenses.

66. On or about December 16, 2008, Lugo or Delrosario initiated charges against Plaintiff for resisting arrest, attempted tampering with physical evidence, attempted assault in the third degree, and harassment in the second degree.

67. On or about November 30, 2010, the judge dropped all of the charges against Plaintiff.

68. On information and belief, Plaintiff's criminal complaint, signed by Lugo or Delrosario, states that Plaintiff resisted arrest, a crime whose elements are that (1) Plaintiff must have intentionally attempted to prevent the arrest of himself or someone else, and that (2) the arrest he attempted to prevent must itself have been supported by a warrant or by probable cause.

69. On information and belief, Lugo and Delrosario knew that Plaintiff had not attempted to prevent his or anyone else's arrest during the events herein.

70. On information and belief, Lugo and Delrosario did not possess sufficient information for a reasonable person to believe that Plaintiff had possessed a controlled substance, and had no reason to believe that Plaintiff had committed any other crime, and therefore did not possess knowledge sufficient for a reasonable person to believe that Plaintiff was committing or had committed a crime at the time of his arrest, and therefore there was no probable cause for Plaintiff's arrest on December 16, 2008. Additionally, there was no warrant for Plaintiff's arrest on December 16, 2008.

71. In light of the above, Lugo and Delrosario did not possess sufficient information for a reasonable person to believe that Plaintiff had resisted arrest, and therefore did not possess knowledge sufficient for a reasonable person to believe that Plaintiff had committed the crime of resisting arrest at the time of the charges.

72. In view of the fact that Defendants Lugo and Delrosario did not possess information upon which a reasonable person would have believed that Plaintiff had committed the crime of resisting arrest at the time he was charged, Defendant Lugo or Delrosario did not have probable cause to charge Plaintiff with that crime.

73. On information and belief, Plaintiff's criminal complaint, signed by Lugo or Delrosario, states that Plaintiff attempted to tamper with physical evidence, a crime whose

elements are that Plaintiff attempted to suppress evidence that he believed was about to be produced or used in a prospective official proceeding, and did so by an act of concealment, alteration, or destruction - by allegedly discarding drugs.

74. On information and belief, Lugo and Delrosario knew that Plaintiff did not possess any drugs at any time during the events herein, and did not discard any drugs, and nor did Plaintiff's actions give a reasonable officer in the position of Lugo or Delrosario reason to believe that Plaintiff had possessed or discarded any drugs.

75. In light of the above, Lugo and Delrosario did not possess sufficient information for a reasonable person to believe that Plaintiff had attempted to tamper with evidence, and therefore did not possess knowledge sufficient for a reasonable person to believe that Plaintiff had committed the crime of attempted tampering with evidence at the time of the charges.

76. In view of the fact that Defendants Lugo and Delrosario did not possess information upon which a reasonable person would have believed that Plaintiff had committed the crime of attempted tampering with evidence at the time he was charged, Defendant Lugo or Delrosario did not have probable cause to charge Plaintiff with that crime.

77. On information and belief, Plaintiff's criminal complaint, signed by Lugo or Delrosario, states that Plaintiff attempted to commit assault in the third degree, a crime whose elements are that Plaintiff intended to cause injury to another person, and caused such injury to such other person or a third person.

78. On information and belief, Lugo and Delrosario knew that Plaintiff did not attempt to cause any injury to any individual during the events herein, and nor did Plaintiff's actions give a reasonable officer in the position of Lugo or Delrosario reason to believe that Plaintiff had attempted to cause any injury to any individual during the events herein.

79. In light of the above, Lugo and Delrosario did not possess sufficient information for a reasonable person to believe that Plaintiff had attempted to commit assault in the third degree, and therefore did not possess knowledge sufficient for a reasonable person to believe that Plaintiff had committed the crime of attempted assault in the third degree at the time of the charges.

80. In view of the fact that Defendants Lugo and Delrosario did not possess information upon which a reasonable person would have believed that Plaintiff had committed the crime of attempted assault in the third degree at the time he was charged, Defendant Lugo or Delrosario did not have probable cause to charge Plaintiff with that crime.

81. On information and belief, Plaintiff's criminal complaint, signed by Lugo or Delrosario, states that Plaintiff attempted to commit harassment in the second degree, a crime whose elements are that Plaintiff intended to harass, annoy, or alarm another person, and either physically contacted that person, followed that person around in a public place, or committed actions that alarmed or seriously annoyed that person and served no legitimate purpose.

82. On information and belief, Lugo and Delrosario knew that Plaintiff did not harass, annoy, or alarm any individual during the events herein, and did not act in such a way that would cause any individual to feel harassed, annoyed, or alarmed, and nor did Plaintiff's actions give a reasonable officer in the position of Lugo or Delrosario reason to believe that Plaintiff had attempted to harass, annoy, or alarm any individual through his actions during the events herein.

83. In light of the above, Lugo and Delrosario did not possess sufficient information for a reasonable person to believe that Plaintiff had attempted to commit harassment in the second degree, and therefore did not possess knowledge sufficient for a reasonable person to believe that

Plaintiff had attempted to commit the crime of harassment in the second degree at the time of the charges.

84. In view of the fact that Defendants Lugo and Delrosario did not possess information upon which a reasonable person would have believed that Plaintiff had committed the crime of harassment in the second degree at the time he was charged, Defendant Lugo or Delrosario did not have probable cause to charge Plaintiff with that crime.

85. Defendants Lugo and Delrosario initiated charges against Plaintiff due to seeking retaliation against Plaintiff, or otherwise other than for the motive of obtaining justice in accordance with the law.

86. Defendants Lugo and Delrosario initiation of criminal proceedings against Plaintiff on the above charges without probable cause and with a motive other than obtaining justice was an act of actual malice against Plaintiff.

87. Plaintiff suffered post-arraignment restrictions on his liberty when he had to attend numerous court hearings for nearly two years before the charges against him were finally dropped.

88. As a direct and proximate result of Plaintiff's malicious prosecution, Plaintiff was caused to suffer a loss of freedom and liberty, great mental anguish, emotional distress, and public humiliation, and was further caused to experience fear of physical harm and violence, and to incur attorney's fees and expenses.

89. The actions of Defendants Lugo and Delrosario amounted to malicious prosecution under 42 U.S.C. §1983 and the Fourth Amendment of the United States Constitution.

VI. SECOND CAUSE OF ACTION-
CIVIL RIGHTS AND CONSTITUTIONAL VIOLATIONS

(Entity liability against Defendant City of New York)

90. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 89 of this Complaint with the same force and effect as though fully set forth herein.

91. On information and belief, responsible officials of the City of New York maintained customs, policies, and practices regarding the supervision and/or training of NYPD officers that led to the deprivations of Plaintiff's Fourth Amendment rights as alleged herein.

92. Responsible officials of Defendant City of New York knew or should have known that if they failed to supervise or train NYPD officers effectively so as to prevent them from violating the constitutional rights of individuals by making unlawful arrests and bringing false charges, the obvious consequence would be that some officers would nonetheless engage in such conduct for various reasons other than to achieve justice in accordance with the law, such as to retaliate against certain individuals, to make arrests and secure prosecutions in order to advance their careers, to gain media attention by arresting high-profile suspects, or to obtain a prosecution when an officer believes that a defendant is guilty but the evidence against that defendant is not sufficient to establish probable cause.

93. In light of the above, responsible officials of Defendant City of New York knew to a moral certainty that NYPD officers would frequently confront situations in which there were powerful incentives to make unlawful arrests or bring false charges.

94. Responsible officials of Defendant City of New York knew that when NYPD officers confront situations in which there were powerful incentives to make unlawful arrests or bring false charges, if those officers are properly supervised and disciplined they would almost always be deterred from making unlawful arrests or bringing false charges due to the understanding that they

would be held liable if they do so, and if those officers were properly trained, they would be fully aware of (A) when it is legal to arrest and charge a suspect and the proper procedures for carrying out an arrest, (B) their responsibilities under the law to make only lawful arrests and bring only truthful charges justified by the available evidence, and (C) the consequences they would face for false charges or unlawful arrests.

95. Responsible officials of Defendant City of New York knew that the consequence of NYPD officers making unlawful arrests or bringing false charges would be the deprivation of the constitutional rights of citizens, such as unlawful arrests, malicious prosecutions, and wrongful imprisonment of citizens, thereby violating those citizens' Fourth Amendment rights.

96. In light of fact that the responsible officials of Defendant City of New York knew or should have known that if they failed to supervise the officers of the NYPD effectively so as to prevent them from violating the constitutional rights of individuals by making unlawful arrests and bringing false charges, the obvious consequence would be that some officers would make unlawful arrests and bring false charges for various reasons other than achieving justice in accordance with the law, said officials had a duty to supervise and/or train NYPD officers effectively, and said officials' failure to do so represents a deliberate indifference to the constitutional rights of Plaintiff and other individuals who were unlawfully arrested or falsely charged.

97. As a direct and proximate result of the aforesaid acts of responsible officials of Defendant City of New York, Plaintiff was falsely arrested and wrongfully charged, and had to attend numerous court appearances over a period of nearly two years, and thereby suffered a deprivation of his rights under the Fourth Amendment to the United States Constitution, great mental anguish, emotional distress, and public humiliation, and was further caused to experience fear of physical harm and violence, and to incur attorney's fees and expenses.

98. As a result of the foregoing, Plaintiff sustained the damages previously described, and seeks compensatory damages from the City of New York.

VII. THIRD CAUSE OF ACTION -
CIVIL RIGHTS AND CONSTITUTIONAL VIOLATIONS
(Supervisory liability against Defendants Does #1-3)

99. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 98 of this Complaint with the same force and effect as though fully set forth herein.

100. That at all times relevant herein, Defendants Does #1-3 (the “Supervisory Defendants”) were the commanding officers, shift commanders, or supervising officers of, and/or had supervisory authority over, the Brooklyn South Narcotics Division’s police officers, including Lugo, Delrosario and DeJesus.

101. As a result of the actions of Defendants Does, which began prior to December 16, 2008, Plaintiff was deprived of liberty and freedom without probable cause, in violation of the rights and immunities secured him by the Fourth Amendment of the United States Constitution and federal civil rights law. The acts and omissions of the Supervisory Defendants were committed under the color of law, and with deliberate indifference toward Plaintiff’s constitutional rights.

102. The unlawful acts and omissions complained of herein were proximately caused by the Supervisory Defendants’ deliberate indifference towards protecting members of the public from false arrests, false charges, and malicious prosecutions by police officers, as evidenced by their inadequate training, supervising, and disciplining of police officers under their command.

103. That the Supervisory Defendants Does, and each of them, was a supervising officer at, or had supervisory authority over officers of, the Brooklyn South Narcotics Division, and

accordingly, either knew or should have known about the unlawful actions and violations of suspects' constitutional rights engaged in by officers assigned to the Brooklyn South Narcotics Division, and for each of the Supervisory Defendants, one or more of the following are true: 1.) after it became apparent to him that widespread violations of suspects' Constitutional rights were occurring within the Brooklyn South Narcotics Division, he failed to act to remedy the effects of those violations; 2.) he failed to take action to change the customs and practices existing at the Brooklyn South Narcotics Division under which unconstitutional acts were occurring, and by his acquiescence allowed the continuation of said customs and practices; 3.) was grossly negligent in the supervision of those of his subordinate officers who were involved in the unconstitutional acts and practices occurring within the Brooklyn South Narcotics Division, such as by failing to discipline those of his subordinate officers who were involved in said actions; and 4.) he failed to act to stop his subordinate officers from continuing their unconstitutional acts and practices, and thereby acted with deliberate indifference towards the constitutional rights of Plaintiff and other citizens who would foreseeably come into contact with those officers.

104. As a result of Defendants Does' deliberate indifference towards protecting members of the public from false arrests, false charges, and malicious prosecutions by police officers, as evidenced, inclusively, by their inadequate training, supervising, and disciplining of the officers involved in the unconstitutional practices at the Brooklyn South Narcotics Division, from a date beginning prior to December 16, 2008 and onwards, Plaintiff was unlawfully arrested, falsely charged, and maliciously and unlawfully prosecuted.

105. The Supervisory Defendants allowed the continuation of policies that resulted in unconstitutional practices occurring, including, but not limited to, violations of Plaintiff's constitutional rights. Despite the Supervisory Defendants' knowledge that there had been a pattern

and practice of illegal and unconstitutional conduct by officers at the Brooklyn South Narcotics Division, including performing false arrests and falsely charging and maliciously prosecuting suspects, the Supervisory Defendants failed to respond in a timely and effective fashion to properly supervise and/or discipline Brooklyn South Narcotics Division officers so as to prevent them from violating the constitutional rights of individuals by making unlawful arrests, bringing false charges, and maliciously prosecuting suspects, and failed to discipline officers engaged in said practices in such a manner as to deter them and their fellow officers from committing those or similar violations in the future, and as a result, Plaintiff was wrongfully arrested and wrongfully charged and subjected to legal proceedings for almost two years in violation of his constitutional rights.

106. The Supervisory Defendants were grossly negligent in their supervision of Lugo, Delrosario, DeJesus, and other Brooklyn South Narcotics Division officers involved in corruption and constitutional violations. The Supervisory Defendants had a duty to monitor the Brooklyn South Narcotics Division and its officers, including, but not limited to, Lugo, Delrosario, and DeJesus. The Supervisory Defendants breached that duty by allowing Lugo, Delrosario, DeJesus and certain other Brooklyn South Narcotics Division officers to operate with virtual impunity despite the fact that the Supervisory Defendants knew that Lugo, Delrosario, DeJesus and those other officers had violated and were continuing to violate the constitutional rights of suspects, including, but not limited to, Plaintiff. The Supervisory Defendants were grossly negligent by failing to discipline those of each of their subordinate officers who were involved in said actions. The Supervisory Defendants' failure to supervise the Brooklyn South Narcotics Division in an effective manner led Lugo, Delrosario, DeJesus and those other officers to believe that they could violate the constitutional rights of suspects without suffering any adverse consequences, which belief led Lugo, Delrosario, and DeJesus to violate Plaintiff's constitutional rights, including by

wrongfully arresting Plaintiff and falsely charging and maliciously prosecuting Plaintiff, and resulted in Plaintiff being subject to legal proceedings for almost two years. The Supervisory Defendants' failure to supervise Lugo, Delrosario, DeJesus and other Brooklyn South Narcotics Division officers in an effective manner amounts to a conscious and voluntary disregard of the Supervisory Defendants' obligation to use reasonable care in monitoring their subordinates, which lack of reasonable care was foreseeably likely to cause grave injuries to Plaintiff and other suspects, and was reckless in light of that foreseeably likely consequence.

107. The Supervisory Defendants exhibited deliberate indifference to the rights of Plaintiff and other citizens by failing to act on information indicating that unconstitutional acts were occurring. Despite the Supervisory Defendants' knowledge that there had been a pattern and practice of illegal and unconstitutional conduct by Lugo, Delrosario, DeJesus and certain other Brooklyn South Narcotics Division police officers, including performing false arrests and falsely charging and maliciously prosecuting suspects, the Supervisory Defendants failed to respond in a timely and effective fashion to properly supervise and/or discipline Lugo, Delrosario, DeJesus and other Brooklyn South Narcotics Division officers so as to prevent them from continuing to violate the constitutional rights of suspects, and as a result, Plaintiff was wrongfully arrested, wrongfully charged and maliciously prosecuted, and subjected to legal proceedings for almost two years in violation of his constitutional rights.

108. As a direct and proximate result of the Supervisory Defendants' deliberate indifference to the constitutional rights of Plaintiff and other citizens, while the Supervisory Defendants were acting under color of law, Plaintiff suffered a loss of his freedom and liberty through the deprivation of his rights under the Fourth Amendment to the United States Constitution, was subject to legal proceedings for almost two years, endured great mental anguish

and emotional distress, suffered public humiliation and experienced fear of violence and harm, and was caused to incur attorney's fees and other expenses.

WHEREFORE Plaintiff demands judgment against each of Lugo, Delrosario, and DeJesus in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Five Million Dollars (\$5,000,000.00) in punitive damages on the First cause of action, against the City of New York in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages on the Second cause of action, and against each of Does #1-3 in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Five Million Dollars (\$5,000,000.00) in punitive damages on the Third cause of action, together with attorneys' fees, and the costs and disbursements associated with bringing this action.

Dated: New York, New York
July 18, 2012

Respectfully submitted,

LEBOW & ASSOCIATES, PLLC

/s/ James B. LeBow

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